

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 12/23/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.
Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: L22-01823
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. ESTELA MOSTRALES
*HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT
FILED BY:
TENTATIVE RULING:

Plaintiff and judgment creditor JPMorgan Chase Bank, N.A. ("Plaintiff") filed a Motion for Set Aside Judgment on October 14, 2025 (the "Motion to Vacate Judgment"). The Motion to Vacate Judgment was set for hearing on December 23, 2025. The motion is unopposed.

Background

Plaintiff filed a Complaint on May 27, 2022. A default was entered on August 30, 2022 (the "Default") against defendant and judgment debtor Estela B Mostrales ("Defendant"). Subsequently, a default judgment in the total amount of \$8,955.90 was entered on January 9, 2023 (the "Default Judgment").

Analysis

The Court has authority to vacate a void default judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 ("Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.") quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397.

Plaintiff's motion is based on the representation that "Plaintiff's counsel was instructed by Plaintiff to set aside the default and default judgment." See Declaration of Donald Sherrill filed October 14, 2025 as part of Application for Order to Set Aside Judgment and for Dismissal and Order Thereon (the "Supporting Declaration"), ¶3. Plaintiff requests that the Court vacate the Judgment entered and that the case be dismissed without prejudice. *Id.* at p. 2.

The Court construes these representations as an implied concession that there is a defect

underlying the judgment such that Plaintiff concedes it is void or voidable and should not be maintained or enforced or that there exist other extrinsic factors justifying the setting aside of the subject Default Judgment in the interests of justice.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default Judgment is hereby VACATED and SET ASIDE.
3. The case is hereby DISMISSED, WITHOUT PREJUDICE.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

2. 9:00 AM CASE NUMBER: L23-00459
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. BRANDY JACKSON
*HEARING ON MOTION IN RE: CONTINUED FROM 11/18/25
FILED BY:
TENTATIVE RULING:

Plaintiff OneMain Financial Group, LLC ("Plaintiff") filed a Motion for Judgment on the Pleadings on July 29, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on October 28, 2025.

It appears that the Clerk of the Court erroneously interlineated the hearing date on the caption of the moving papers as having been set for "10/29/2025." The motion is not set for October 29, 2025.

The motion was unopposed, and the Court issued a tentative ruling in connection with the previous October 28th hearing date. However, out of an abundance of caution, given the erroneous date referenced on the motion caption and subsequent papers, the Court continued this matter to a subsequent hearing date, November 18, 2025. Plaintiff was ordered to give notice of the new hearing date.

Both sides appeared for the hearing on November 18, 2025. Defendant Brandy Jackson ("Defendant") confirmed receipt of notice of the motion. She also advised the Court of payments made on the subject debt not accounted for in the amount stated in the RFAs underlying the pending motion and relief requested, which Plaintiff acknowledged. See Order issued November 18, 2025. **The Court continued the motion to allow the parties an opportunity to confer on resolution or for the parties to otherwise submit any further papers addressing the issue regarding the effect of the payments made and received on the relief requested by the pending motion. *Id.* The Court ordered that either party may submit any updated papers for the Court's consideration, which shall be filed and served no later than December 12, 2025. *Id.*** The hearing was continued to

December 23, 2025. *Id.*

No further filings by either party appear of record.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Brandy N Jackson (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract and Common Counts (Open Book Account, Account Stated, Money Had and Received, Goods Sold and Delivered, Money Lent and Money Paid at Defendant’s Special Instance and Request) based on the allegation that Defendant became indebted in the amount of \$7,530.54 on a personal loan account. See Complaint filed January 26, 2023, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Defendant’s Answer was filed April 21, 2023. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed April 21, 2023.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered June 4, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$7,530.54. See Deemed Admitted Order; see also Request for Judicial Notice filed July 29, 2024 (“RJN”), **Exhibit B**, RFAs attached to Declaration of Douglas Agne, Esq. filed December 12, 2024.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Plaintiff has not submitted any further briefing, notwithstanding the Court's invitation during the last hearing, on the issue of the propriety of entering a judgment on the pleadings where the Court has actual, uncontested information before it that the principal amount due and owing is at variance with the amount set out in the pleadings before the Court.

The Court concludes that it would be a miscarriage of justice to enter a money judgment against Defendant—in the context of a motion for judgment on the pleadings—for an amount that the Court and the parties are aware exceeds Defendant's liability on the obligation sued upon, as admitted in open court, especially where the creditor has had an opportunity to address the issue by further filing(s) but has not done so. Nor has Plaintiff presented any authorities suggesting that the Court could enter a judgment in a lesser sum in these circumstances. The Plaintiff may have other recourse, but the Court does not conclude that judgment on the pleadings is appropriate at this stage.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is DENIED.

3. 9:00 AM CASE NUMBER: L24-01684

CASE NAME: VELOCITY INVESTMENTS, LLC VS. IILENA HANDY

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND RESTORE CASE TO PREVIOUS STATUS FILED BY PLN ON 10/6/25**

FILED BY: VELOCITY INVESTMENTS, LLC

TENTATIVE RULING:

Plaintiff and judgment creditor Midland Credit Management, Inc. ("Plaintiff") filed a Motion to Vacate Dismissal and Restore Case to Previous Status on October 6, 2025 (the "Motion to Vacate Dismissal"). The Motion to Vacate Dismissal was set for hearing on December 23, 2025. No opposition has been filed.

Background

On August 6, 2025, the Court issued its Order Dismissing Complaint after OSC (the "August 6, 2025 Dismissal"). The Court dismissed Plaintiff's case with prejudice for failure to appear at a June 4, 2025 Case Management Conference (CMC). The Court's dismissal was with prejudice due to the aggravating circumstances addressed at length in the August 6, 2025 Dismissal.

Analysis

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party "from a judgment, dismissal, order, or other proceeding taken against him or her" from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41

Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt*, *supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

The listed address of record for Plaintiff’s attorneys is “**9320 East Raintree Drive, Scottsdale, AZ 85260.**” See Complaint filed March 1, 2024 (emphasis added). This is reflected in the caption of the operative Complaint:

1	GURSTEL LAW FIRM P.C.	
2	Gurstel Law Firm P.C.’s California Debt Collection License: 10361-99.	
3	Kimberlee Tsai (SBN # 227426)	
3	Brianna Elmassian (SBN# 329673)	
4	Stella Park (SBN# 310445)	Per local Rule, This case is assigned to
4	Spencer Penuela (SBN# 324544)	Judge Douglas, Danielle K, for all purposes.
5	Anna Karkoon (SBN# 295797)	
5	Ann Doan (SBN# 297543)	
6	9320 East Raintree Drive, Scottsdale, AZ 85260	
7	Telephone: (877) 344-4002	
7	Fax: (877) 750-6335	
8	info@gurstel.com	
8	Attorneys for Plaintiff,	
9	Velocity Investments, LLC	

See Complaint filed March 1, 2024, p. 1.

As recounted by Plaintiff’s counsel, “[o]n June 4, 2024, the Court attempted to mail a Notice of Case Management Conference to Plaintiff’s counsel. However, the address for Plaintiff’s counsel on the Notice is the address for Moore Law Group, not Gurstel Law Firm P.C., therefore Plaintiff never received notice of the scheduled hearing.” Declaration of Counsel filed October 6, 2025 (“Supporting Declaration”), p. 2.

The initial Case Management Conference (CMC) notice was given to the address for a different law firm, though it referenced one of the handling attorneys listed in the caption of the operative Complaint, Ann Doan:

ANN DOAN
APC / PO BOX 25145
THE MOORE LAW GROUP
SANTA ANA CA 92799

See Notice of Case Management Conference dated June 4, 2024 (clerk’s notice of an upcoming August 26, 2024 CMC).

After a non-appearance at the August 26, 2024 CMC, the Court issued an OSC to Plaintiff

and set the matter for hearing on November 7, 2024. Sanctions were imposed when there was no appearance at that hearing (the “November 7, 2024 Sanctions”).

The case was set for a further CMC on March 5, 2025. The notice sent used the same wrong address. The matter was re-set in Department 34 for March 27, 2025, and the clerk’s office sent another notice, again with the wrong address for Plaintiff’s counsel.

Upon reviewing the file, Department 34 issued a detailed written order addressing the issue with the prior service to the incorrect address. See Order dated March 27, 2025 (the “March 27, 2025 Order”). The Court’s order included an OSC regarding vacating the prior November 7, 2024 Sanctions and reset the CMC for June 4, 2025. *Id.* The Court directed the clerk to serve the new order at the correct designated address of record in Scottsdale, Arizona:

proceedings. See Minute Order dated November 7, 2024. However, on further review of the Court’s docket, it appears that prior notices were sent by the Court to “ANN DOAN, APC / PO BOX 25145, THE MOORE LAW GROUP, SANTA ANA CA 92799.” This does not appear to be consistent with the attorney information on the operative complaint which lists GURSTEL LAW FIRM P.C. with an address in Scottsdale, Arizona. There do not appear on the docket to be any notices regarding a different attorney appearing on behalf of plaintiff or any Substitution of Attorney. Accordingly, it appears to the Court that the prior OSC and sanctions issued by the Court were issued in error. The clerk of the Court is directed to serve this order on plaintiff’s attorneys of record in the case, the Gurstel Law Firm. By this order, the Court is setting the matter for further CMC proceedings and making other orders to move this case forward.

See March 27, 2025 Order, ¶1.

The March 27, 2025 Order was thereafter served at the correct address of record for plaintiff’s counsel, 9320 East Raintree Drive in Scottsdale, Arizona:

**GURSTEL LAW GROUP
9320 EAST RAINTREE DRIVE
SCOTTSDALE, AZ 85260**

See Clerk’s Certificate of Mailing dated March 27, 2025.

At the June 4, 2025 CMC, Plaintiff failed to appear, despite proper notice to its correct address of record. See Order entered June 16, 2025 (the “June 16, 2025 Order”). The Court’s order vacated the prior November 7, 2024 Sanctions and issued a new order to Show Cause regarding the failure to appear for the June 4, 2025 CMC. *Id.* That was set for hearing on July 7, 2025. *Id.* The written June 16, 2025 Order was served on the correct address of record for plaintiff’s attorneys:

ANN DOAN
9320 E RAINTREE DR
SCOTTSDALE, AZ 85260

See Clerk's Certificate of Mailing dated June 16, 2025.

At the hearing on July 7, 2025, there was still no appearance by Plaintiff or its attorneys, and the matter was dismissed with prejudice. See Order entered August 6, 2025.

Plaintiff's Supporting Declaration indicates that its "Counsel in California" did not receive the March 27, 2025 Order.

Counsel in California did not receive that notice.

See Supporting Declaration, p. 2, ¶16. Nor did "Counsel in California" receive the June 16, 2025 Order. *Id.* at , pp. 2-3, ¶17.

Importantly, the Supporting Declaration does not show that Plaintiff and/or its attorneys did not receive the March 27, 2025 Order or June 16, 2025 Order. Rather, it simply asserts that the attorneys somewhere "in California" did not receive the order.

The Supporting Declaration says nothing to explain or justify the apparent failure of the coordination between the Arizona and California offices or to otherwise show good cause to demonstrate why Plaintiff and its counsel ought to be relieved from the dismissal.

The Court is unpersuaded by the notion that the Court should have served notices to some mystery address in California for Plaintiff's attorneys or that Plaintiff was not given adequate notice of the subject court hearings by mail to the Scottsdale, Arizona address. Every pleading filed in the case by Plaintiff has listed the Scottsdale, Arizona address as Plaintiff's attorneys' address of record. Indeed, the very address listed on the Supporting Declaration is the Scottsdale, Arizona address. The formal court order (see March 27, 2025 Order) reciting the fact that the Scottsdale, Arizona address was the correct address for service on Plaintiff and its attorneys was of record in the case for months before service of the June 16, 2025 Order that led to the dismissal.

Plaintiff's attorneys cannot simply ignore repeated notices served at their designated address of record simply because their firm, for some reason, repeatedly failed to coordinate delivery of court notices from the designated address of record to an apparent California office. This is especially true where they had taken no action to designate a different California address of record with the Court, which they could have easily done at

any point.

And even if some internal confusion led to the failure to forward court notices to the proper handling office of the firm, Plaintiff's attorneys give no information to establish it was the result of some excusable mistake, inadvertence, surprise or neglect, rather than simple inexcusable neglect. At best Plaintiff's MPA states "When Plaintiff did receive notice of the July 7, 2025 hearing, Plaintiff's counsel in Arizona inadvertently failed to notify Plaintiff's counsel in California of the scheduled hearing." See MPA, p. 4, lns. 14-16. Importantly, however, that statement fails to cite any supporting evidence. Likely because that statement is not made in the Supporting Declaration. See Supporting Declaration, pp. 2-3, ¶¶7-8.

The scant evidence proffered as relates to the receipt of the March 27, 2025 Order and June 16, 2025 Order fails to demonstrate that Plaintiff's and its attorneys' repeated failures appear and the resulting dismissal were the result of excusable mistake, inadvertence, surprise or neglect.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Dismissal is DENIED.
2. The Court shall enter the order after hearing.

4. 9:00 AM CASE NUMBER: L24-10643
CASE NAME: WELLS FARGO BANK, N.A. VS. JASMEEN GILL
HEARING ON SUMMARY MOTION MOTION FOR SUMMARY JUDGMENT FILED BY PLN ON 8/7/25
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") filed a Motion for Summary Judgment on August 7, 2025 (the "MSJ"). The MSJ was set for hearing on December 23, 2025.

Disposition

The Court orders as follows:

1. The parties advised the Court at the Case Management Conference (CMC) on September 24, 2025 that the matter had resolved and settlement paperwork would be submitted (the "Settlement"). However, it does not appear that any Settlement papers have been filed as yet.
2. In light of the reported Settlement, the MSJ is CONTINUED. The clerk of the Court shall give notice of the continued hearing date.

5. 9:00 AM CASE NUMBER: L25-00239
CASE NAME: JPMORGAN CHASE BANK N.A. VS. BENNY ENGLISH
*HEARING ON MOTION IN RE:
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the “Motion to Deem Admissions”). The Motion to Deem Admissions was set for hearing on December 23, 2025. The motion is unopposed.

Background

Plaintiff served Defendant Benny English (“Defendant”) with a Requests for Admission (Set One). See Declaration of Gregory Parks filed October 6, 2025 as part of Motion to Deem Admissions (“Supporting Declaration”), ¶2 and **Exhibit 1** thereto (the “RFAs”). The RFAs were served on April 1, 2025 by mail. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated April 1, 2025 (the “Proof of Service”)].

With a five calendar day extension for service of the RFAs by mail, the responses were due to be served on or before May 6, 2025 (30 days from and after April 1, 2025 was May 1, 2025 and five calendar days thereafter fell on May 6, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

Having considered the moving papers and any further pleadings submitted, the Court

makes the following findings as to the discovery requests at issue:

1. Defendant was duly served with the subject RFAs.
2. No timely response was made to the RFAs by Defendant.
3. No opposition or other responsive pleadings by Defendant have been filed with the Court.

Sanctions

Plaintiff does not seek imposition of sanctions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Deem Admissions is GRANTED.
2. The truth of the facts recited in Attachment 1, Nos. 1 through 8, to RFA No. 1 are DEEMED ADMITTED by Defendant.
3. The genuineness of the document attached to the RFAs (defined as the “Terms and Conditions”), pursuant to RFA No. 2, is DEEMED ADMITTED by Defendant.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

6. 9:00 AM CASE NUMBER: L25-01638
CASE NAME: DISCOVER BANK VS. KIMBERLY KNELL
***HEARING ON MOTION IN RE: MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Defendant Kimberly A Knell (“Defendant”) filed a Motion for Order Vacating and Setting Aside Default and Default Judgment on November 21, 2025 (the “Motion to Set Aside Default”). The Motion to Set Aside Default was set for hearing on December 23, 2025. No opposition to the motion has been filed.

Background

Plaintiff filed a Complaint on February 10, 2025. A default was entered against Defendant on June 13, 2025 (the “Default”). Thereafter, a default judgment was entered on September 25, 2025 (the “Default Judgment”).

Analysis

Defendant’s motion is based upon Code of Civil Procedure section 473(b). See

Memorandum of Points and Authorities (“MPA”) as part of Motion to Set Aside Default, p. 3.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Defendant recounts, at length, an extraordinary set of difficult life circumstances which Defendant describes led to her neglecting to timely file a response to the lawsuit after service. See Declaration in Support, pp. 1-2.

Moreover, it is relevant that a speedy default was taken without evidence of a prior demand for a response. The “quiet speed” of a party in seeking a default can itself be a sufficient ground for setting aside a default under Section 473. See *Robinson v. Varela* (1977) 67 Cal.App.3d 611, 616. The application for entry of a default against Defendant was signed by Plaintiff on June 12th, less than a month after Defendant’s response deadline (the Proof of Service of Summons reflects that personal service was perfected on Defendant on April 18, 2025 and thirty (30) days thereafter would have been Sunday, May 18, 2025, with the deadline rolling over to Monday, May 19, 2025). And there was no evidence submitted of a prior demand for a response or other attempt to contact Defendant before taking the default.

The Court finds, in its discretion, that the default resulted from Defendant’s mistake, inadvertence, surprise, and/or excusable neglect. The Court further finds that it is just and equitable to relieve Defendant from the default and that Plaintiff will not be prejudiced by granting such relief.

In addition, the Court does not conclude that the motion is necessarily barred by the failure to submit a proposed form of responsive pleading when the motion was filed. See Code Civ. Proc. § 473(b) (“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted...”). A court can deny the motion outright for this reason alone. See *Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 64 (failure to lodge a form of proposed responsive pleading means that the motion is not in “proper form” and, as such, is properly denied.).

However, this requirement can be satisfied by the filing of a proposed answer at any time before the hearing. See *Hu v. Fang* (2002) 104 Cal.App.4th 61, 65. Accordingly, as set forth below, the Court is inclined to grant the motion if Defendant appears and lodges a proposed form of responsive pleading.

Disposition

The Court finds and orders as follows:

1. For the reasons discussed above, the parties are **ORDERED TO APPEAR** to address the proposed form of responsive pleading, such as an Answer. **Defendant is directed to bring a form of proposed responsive pleading, such as an Answer, to the hearing.**
2. Subject to Paragraph 1 above, the Motion to Set Aside Default is GRANTED.
3. Defendant shall file and serve a responsive pleading within ten (10) days.

7. 9:00 AM CASE NUMBER: L25-05488

CASE NAME: CAPITAL ONE, N.A. VS. CHERYL RUIZ

*HEARING ON MOTION IN RE:

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

_ Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted on October 6, 2025 (the "Motion to Deem Admissions") as against defendant Cheryl L Ruiz ("Defendant"). The Motion to Deem Admissions was set for hearing on December 23, 2025. Opposition papers were filed on December 12, 2025.

Background

Plaintiff indicates that it served Defendant with a set of requests for admissions. See Declaration of Brian Langedyk filed October 6, 2025 as part of the Motion to Deem Admissions ("Supporting Declaration"), ¶2 and **Exhibit 1** thereto (the "RFAs").

Plaintiff's Supporting Declaration indicates that the RFAs were served on August 11, 2025 by mail to Defendant. *Id.* at ¶2 and **Exhibit 1** [attached Proof of Service dated August 11, 2025 (the "Proof of Service")]. The service was asserted to have been done at an address in Oakley, California:

NAME AND ADDRESS OF EACH PERSON SERVED:

Cheryl L Ruiz
117 Old Oak Court
Oakley, CA 94561

See Proof of Service, Supporting Declaration, **Exhibit 1**.

The Opposition includes a declaration by Defendant (the “Opposition Declaration”) asserting that Defendant “never received request for admissions paperwork” that Plaintiff contends was sent to her. See Opposition Declaration, ¶1.

Assuming service was made, the responses were due to be served on or before September 15, 2025, including a five calendar day extension for service of the RFAs by mail (30 days from and after August 11, 2025 was September 10, 2025 and five calendar days thereafter fell on September 15, 2025). No responses were received by that deadline or through the time of the filing of the motion. See *id.* at ¶3.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b). The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777.

A responding party’s service, before the hearing on a “deemed admitted” motion, of **substantially compliant** responses, defeats a propounding party’s attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776; see also CJER, *California Judges Benchbook: Civil Proceedings - Discovery* (2024) (“CJER Civ. Proc. Discovery”), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

The address used for service of the RFAs on Defendant, as reflected in Plaintiff’s Proof of

Service, is the correct address for Defendant. The only evidence presented to show the lack of receipt is Defendant's own uncorroborated statements.

In any event, the right to move for a deemed admitted order turns on proper service, not proof of actual receipt.* Code Civ. Proc. §§ 2033.070 ("The party requesting admissions shall serve a copy of them on the party to whom they are directed and on all other parties who have appeared in the action.") and 2033.210 ("The party to whom requests for admission have been directed shall respond...").

The Court next turns to whether the pending motion should be denied because Defendant provided Plaintiff with responses to the RFAs. The Opposition states that Defendant "will serve substantially compliant response before motion hearing on 12/23/2025." See Opposition, p. 2.

No further declaration addressing any such responses to the RFAs has been filed to date.

*While the Court might well have discretion in the interests of justice to deny a discovery motion if it were persuaded that a responding party never actually received the discovery request at issue, the Court cannot come to that conclusion here, by a preponderance of the evidence.

Disposition

The Court further finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR** to address the status of service of any responses to the RFAs by Defendant.

8. 9:00 AM CASE NUMBER: L25-07949
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. SOLOMON JAPPA
HEARING IN RE: MOTION TO COMPEL ARBITRATION & DISMISS
FILED BY:
TENTATIVE RULING:

Defendant Solomon V. Jappa ("Defendant") filed a Motion to Compel Arbitration and Dismiss or Stay Proceedings on November 6, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on December 23, 2025.

A Proof of Service of the motion on the plaintiff OneMain Financial Group, LLC ("Plaintiff") has been filed.

Plaintiff filed an Opposition on December 10, 2025.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2025) ("CJER Civ. Proc. before Trial"), § 3.35.

Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard “in a summary way in the manner ... provided by law for the making and hearing of motions.” Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant’s motion contends that the parties’ contract contains a “comprehensive arbitration provision...” See Declaration of Solomon V. Jappa (the “Supporting Declaration”) attached as part of Arbitration Motion, p. 5, ¶2. A copy of the agreement with the subject arbitration clause (the “Arbitration Agreement”) is attached to Defendant’s Supporting Declaration. The Arbitration Agreement recites that it is governed by the FAA.* Arbitration Agreement, ¶1.

Plaintiff’s Opposition does not deny the existence of valid Arbitration Agreement. Rather, Plaintiff contends that Defendant has not complied with a prerequisite to contractual arbitration, service of written “Notice of Dispute” compliant with the terms and conditions of the Arbitration Agreement.

4. PRE-ARBITRATION NOTICE OF DISPUTE AND INFORMAL RESOLUTION. A party who intends to seek arbitration must first send to the other party a written Notice of Dispute (“Notice”). The Notice to Lender may be sent by U.S. mail or professional courier service addressed to OneMain Financial, Legal Department, 100 International Drive, 16th Floor Baltimore, MD 21202 (“Notice Address”). The Notice to me may be sent to the address on file with my account. The Notice must include all of the following information: (a) my name; (b) my account number; (c) a description of the nature and basis of the claim or dispute; (d) an explanation of the specific relief sought and the basis for the calculations; (e) the signature of the party sending the Notice; and (f) if I am sending the Notice and have retained an attorney, my signed statement authorizing Lender to disclose my confidential account records to my attorney if necessary in resolving my claim.

Arbitration Agreement, ¶4.

This is not a case involving an arbitration clause that might be invoked by a mere implied demand for arbitration by virtue of bringing of a motion to compel arbitration. For example, where the relevant arbitration clause language merely requires a party to make a “demand” or to give “notice” requesting arbitration, it may well be enough to seek to compel arbitration after the initiation of a lawsuit by the other party or other conduct tantamount to a refusal to arbitrate the controversy. See *Hyundai Amco America, Inc. v. S3H, Inc.* (2014) 232 Cal.App.4th 572, 577 (a formal demand is not necessarily a prerequisite to seeking a court order compelling arbitration).

Here, however, the subject Arbitration Agreement contains a specific contractual prerequisite to arbitration, the service of a written “Notice of Dispute” which must include the information set forth in the Arbitration Agreement. See Arbitration Agreement, ¶4. The Arbitration Agreement then requires certain informal resolution procedures, followed by initiation of arbitration through the American Arbitration Association (“AAA”). See Arbitration Agreement, ¶¶4-5.

A trial court properly denies a motion to compel if a party seeking to compel arbitration has failed to meet specific demand requirements “pursuant to and under the terms of their written arbitration agreement.” *Mansouri v. Superior Court* (2010) 181 Cal.App.4th 633, 641.

Defendant has not shown service of a valid demand and compliance with the other prerequisites for contractual arbitration pursuant to and under the terms of their Arbitration Agreement.

*Although an arbitration agreement may provide that the arbitration is to be governed by the FAA, generally the California Arbitration Act governs arbitral procedures brought in California courts. *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922. There has been no showing of some FAA specific limitation relevant to enforcement of the subject Arbitration Agreement in this case. In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, supra*, 55 Cal.4th at 236.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is DENIED, without prejudice.
2. The Court will issue the order after hearing.

9. 9:00 AM CASE NUMBER: N25-2204
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KYO RAGO
*MOTION/PETITION TO COMPEL ARBITRATION PTN TO CONFIRM CONTRACTUAL ARB
FILED BY:

TENTATIVE RULING:

Petitioner JPMorgan Chase Bank, N.A. (“Petitioner”) filed a Petition to Confirm Contractual Arbitration Award on October 6, 2025 (the “Petition to Confirm”). The Petition to Confirm was set for hearing on December 23, 2025.

Background

An arbitration was conducted between the parties as set forth in the Award of Arbitrator dated September 16, 2025 (the “Arbitration Award”).

The Arbitration Award was issued as against defendant Kyo Prana-Yama Rago (“Defendant”) in the amount of \$3,861.49.

Analysis

Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate that award. Code Civ. Proc. § 1285; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 3.62. Such petition is a summary proceeding in the manner of and upon the notice provided by law for the making and hearing of motions, except that not less than ten (10) days’ notice of the date set for the hearing on the petition shall be given. Code Civ. Proc. § 1290.2.

The petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based must be served in the manner provided in the arbitration agreement for the service of such petition and notice. Or, if none is provided, service must be in the manner provided by law for the service of summons in an action as to service within the state (otherwise service outside the state shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail). Code Civ. Proc. § 1290.4.

Once a party to an arbitration files a petition to confirm, correct or vacate an award, a response must be filed and served within ten (10) days after service of the petition, unless the court extends, or both parties agree to extend, this deadline. Code Civ. Proc. § 1290.6; see CJER Civ. Pro.—Before Trial, § 3.63.

Before confirming an award, a trial court has a duty, in order to follow the dictates of Code of Civil Procedure section 1283.4, to ensure that the arbitrator’s “award” is an “award” within the meaning of that statute. *Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767; see CJER Civ. Pro.—Before Trial, § 3.94.

Disposition

The Court finds and orders as follows:

1. **Continued Hearing Date on Petition to Confirm.** No proof of service has been filed to date reflecting service of the Petition to Confirm and notice of the hearing. See Code Civ. Proc. §§ 1290.2 and 1290.4. The Court hereby continues the matter to **February 10, 2025, 9:00 a.m. in Department 14.**